

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 746

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO FIRE; AMENDING CHAPTER 1, TITLE 38, IDAHO CODE, BY THE ADDITION
OF A NEW SECTION 38-131C, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING
DEFICIENCY WARRANTS FOR FIRE; AND DECLARING AN EMERGENCY AND PROVIDING
AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 1, Title 38, Idaho Code, be, and the same is
hereby amended by the addition thereto of a NEW SECTION, to be known and des-
ignated as Section 38-131C, Idaho Code, and to read as follows:

38-131C. DEFICIENCY WARRANTS FOR COSTS OF PROVIDING FIRE RESOURCES
FOR NON-FIRE SUPPRESSION ACTIVITIES. (1) The state board of land commis-
sioners may authorize the issuance of deficiency warrants for the purpose of
paying the reimbursable costs of providing fire resources for non-wildland
fire suppression activities as mobilized by established wildland fire and
emergency management dispatch and deployment processes and procedures.

(2) When so authorized, the state controller shall draw deficiency war-
rants against the general fund.

SECTION 2. An emergency existing therefor, which emergency is hereby
declared to exist, this act shall be in full force and effect on and after
July 1, 2026.